

25VECV06775 25VECV06775

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-08-14

Motion: MOTION FOR LEAVE TO FILE COMPLAINT-IN-INTERVENTION

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Case Number: 25VECV06775 Hearing Date: August 14, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

SOPHIA JARRIN,

Plaintiff,

vs.

CRYSTAL ALVAREZ, an individual;

DOES 1 through 20, inclusive,

Defendant.

CASE NO: 25VECV06775

[TENTATIVE]

ORDER RE:

MOTION

FOR LEAVE TO FILE

COMPLAINT-IN-INTERVENTION

Dept. W

8:30 a.m.

August 14, 2026

[TENTATIVE] ORDER: The Court GRANTS
Intervenor Benchmark Insurance's Motion for Leave to File Complaint in
Intervention.

Background

This
is a motor vehicle personal injury case. Plaintiff Sophia Jarrin alleges that
on June 4, 2025, she was driving northbound on Topanga Canyon Boulevard when
Defendant, driving southbound, made a sudden left-hand turn, negligently
causing an accident.

On November 25, 2025, Plaintiff brought suit against Defendant,
alleging two causes of action: general negligence, and negligence per se.

Now, non-party Benchmark Insurance seeks leave to intervene in this
case.

Discussion

Non-party Benchmark Insurance seeks leave to intervene in this case.
(Mot. for Leave, p. 2:4-6.) Benchmark Insurance asserts that it has paid out
workers compensation to Plaintiff for the injury she sustained from this
accident. (Id. pp. 1:26-2:3.) Benchmark now seeks to pursue subrogation
reimbursement from Defendant, pursuant to LAB § 3852.

i)

Legal Basis

Benchmark's motion is based on CCP § 387, which states, "[t]he court
shall, upon timely application, permit a nonparty to intervene in the action or
proceeding if either of the following conditions is satisfied:

(A) A provision of law confers an unconditional right to intervene.

(B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties.

[or]

(2) The court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both.”

(CCP § 387(d)(1-2).)

ii)

Potential Suit

First, the Court notes that Benchmark does have a potential claim under LAB § 3852. This statute states that, “[t]he claim of an employee . . . for compensation does not affect their claim or right of action for all damages proximately resulting from the injury or death against any person other than the employer. Except as provided in subdivision (b), an employer who pays, or becomes obligated to pay compensation, or who pays, or becomes obligated to pay salary in lieu of compensation, or who pays or becomes obligated to pay an amount to the Department of Industrial Relations pursuant to Section 4706.5, may likewise make a claim or bring an action against the third person. In the latter event the employer may recover in the same suit, in addition to the total amount of compensation, damages for which they were liable including all salary, wage, pension, or other emolument paid to the employee or to their dependents.” (LAB § 3852(a) [emphasis added].) Based on this statute, Benchmark, as the insurer of Plaintiff’s employer, has a potential claim against Defendant.

iii)

Permissive Intervention Analysis

When analyzing a request for permission intervention, the Court must analyze three factors: “[t]he Intervenor must have a direct interest in the

lawsuit, the Intervenor must not enlarge the issues raised by the original parties and the Intervenor must not tread on the rights of the original parties to conduct their own lawsuit." (Kuperstein v. Superior Court (1988) 204 Cal.App.3d 598, 600.)

Here, all three of these factors weigh in favor of allowing intervention. First, Benchmark has a direct interest in this litigation, as both parties' claims are based on the assertion that Defendant's negligence caused the underlying car accident. (Compl. ¶¶ 23, 34; see also, Matthews Decl. ¶¶ 8-10.) Thus, a victory or loss for Plaintiff is a victory or loss for Benchmark.

For similar reasons, Benchmark's intervention, will not enlarge the issues raised in this suit. Both of Plaintiff's claims are based on the argument that Defendant negligently caused this traffic collision. (Compl. ¶¶ 23, 34.) Meanwhile, Benchmark's proposed Complaint-in-Intervention seeks reimbursement of the workers compensation benefits paid out to Plaintiff as a result of Defendant negligently causing this same traffic collision. (Matthews Decl. ¶¶ 8-10.) Thus, the primary factual dispute for both claims is identical.

Finally, Benchmark states that its intervention will not interfere with the parties' rights to conduct the instant lawsuit. Specifically, Benchmark states that they will not seek a delay of trial. (Mot. for Leave, p. 3:16-18.) The Court also notes that the trial in this case is scheduled for October 25, 2027, thus giving all parties sufficient time to try this case as set.

Thus, all three of the permissive intervention factors weigh in favor of granting intervention. Additionally, this motion is unopposed.

For these reasons, the Court GRANTS Intervenor Benchmark Insurance's Motion for Leave to File Complaint in Intervention.

Conclusion

The Court GRANTS Intervenor Benchmark Insurance's Motion for Leave to File Complaint in Intervention which shall be filed within 20 days.

IT

IS SO ORDERED, Benchmark Insurance TO GIVE NOTICE.

August 14, 2026